

Badan Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 May 2022 · WRIT - C No. 4478 of 2022 · **Writ disposed; objection under Para 6.8; coercive recovery stayed**

HEADNOTE

A consumer's writ to quash proposed revenue assessment notices was disposed of without examining merits. The Allahabad High Court relegated him to an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, directed a time-bound decision after hearing, and stayed coercive recovery on the demand pending that process.

FACTUAL SUMMARY

Badan Singh challenged two proposed revenue assessment notices dated 28 and 29 October 2020 issued by the power distribution corporation, seeking certiorari to quash them and mandamus for a hearing. Counsel for the corporation stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period. The Division Bench then disposed of the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to proposed revenue assessment notices

HOLDING

Without expressing any opinion on merits, a writ against proposed revenue assessment notices is disposed of by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if submitted, the distribution licensee shall decide it in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against proposed revenue assessment notices was disposed of by relegating the consumer to the statutory objection under Para 6.8 rather than examining the demand on merits. ¶ 1

para-6.8-objection-alternate-remedy Liberty was granted to file an objection under Para 6.8, to be decided after hearing within a fixed period, with a short stay of coercive recovery. ¶ 1

assessment-6.8-alternate-remedy Challenge to proposed revenue assessment/demand notices was treated as a matter for the clause 6.8 objection forum. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROPOSED REVENUE ASSESSMENT NOTICES DATED 28.10.2020 AND 29.10.2020

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1